

		prescribed by subdivision (b) of Section 1005 of the Code of Civil Procedure on (1) the clerk or secretary or board of the local public entity, if the respondent is a local public entity” Here, the petition was not served on the “clerk or secretary or board of the local public entity.” Instead, the proof of service shows the petition and supporting declaration were served on the “Insurance Department” for respondent Huntington Beach Union High School District (Respondent). That fails to comply with section 946.6, subdivision (d), and Respondent has not filed any opposition or taken any action to waive this defect or otherwise show it was properly served with the petition. Moreover, Petitioner has not filed any notice or proof of service showing Petitioner gave Respondent notice of today’s hearing on the petition. The court set the hearing and gave notice to Petitioner. Respondent, however, has not yet appeared in this action and therefore has no address of record. As such, the court could not give Respondent notice of today’s hearing. It was Petitioner’s responsibility to provide such notice. California Rules of Court, rule 3.1300(c) requires a proof of service to be filed at least five court days prior to the hearing. Based on the foregoing, the hearing on the petition is CONTINUED as set forth above to allow Petitioner to correct the service issues discussed above and provide proof of service. Petitioner’s counsel is ordered to give notice of this ruling.
11.	<i>Interinsurance Exchange of the Automobile Club v. Tyler</i> 2026-01565527	OFF CALENDAR; Hearing erroneously set.
12.	<i>David Haller vs. Gladys Haller</i> 2025-01520273	Before the court is the motion to vacate sister-state judgment filed on May 1, 2026, by defendant and judgment debtor Gladys Haller (Gladys). As more fully set forth below, the motion is DENIED. By this motion, Gladys seeks to vacate the sister-state judgment this court entered in favor of plaintiff and judgment creditor David Haller (David) on October 20, 2025. The sister-state judgment is based on a Virginia judgment entered on or about June 6, 2025. Gladys brings the motion pursuant to Code of Civil Procedure section 1710.40, arguing the sister-state judgment must be

	set aside because it is based incorrect interest calculations and the underlying Virginia judgment was obtained by fraud and mistake that prevented a fair trial. Code of Civil Procedure section 1710.40, subdivision (b), requires any motion to vacate a sister-state judgment to be made within 30 days after service of notice of entry of the judgment: "Not later than 30 days after service of notice of entry of judgment pursuant to Section 1710.30, proof of which has been made in the manner provided by Article 5 (commencing with Section 417.10) of Chapter 4 of Title 5 of Part 2, the judgment debtor, on written notice to the judgment creditor, may make a motion to vacate the judgment under this section." Gladys's motion is untimely under section 1710.40, subdivision (b). David presented evidence showing notice of entry of judgment was personally served on Gladys on March 27, 2026. (ROA 27, Kluewer Decl., ¶ 2, Ex. 1.) Gladys has not disputed that is when she was served. Gladys filed this motion on May 1, 2026, and she served it on David's counsel on May 6, 2026. (ROA 17; ROA 27, Kluewer Decl., ¶ 3, Ex. 2.) That is 35 days and 40 days after service of notice of entry of the sister-state judgment. Accordingly, Gladys failed to seek relief within the required 30-day period after service of notice of entry of judgment and her motion is untimely. Moreover, the motion fails to show a valid basis for relief regardless of its timeliness. On a section 1710.40 motion to vacate a sister-state judgment, the permissible scope of inquiry is limited to whether the forum court had fundamental jurisdiction in the case. (<i>Silbrico Corp. v. Raanan</i> (1985) 170 Cal.App.3d 202, 208 ["[T]he law is well established that upon a claim that a foreign judgment is not entitled to full faith and credit, the permissible scope of inquiry is limited to a determination of whether the court of forum had fundamental jurisdiction in the case"].) "Therefore, the judgment of a sister state must be recognized in a California court if that sister state had jurisdiction over the parties and the subject matter and all interested parties were given reasonable notice and opportunity to be heard." (<i>Ibid.</i>) Gladys argues the judgment should be set aside because she did not comprehend the agreement she signed that lead to the original Virginia judgment. She suggests her own attorney pressured her to sign the agreement. Gladys, however, presents no evidence to show David or his attorney engaged in any misconduct of any kind.
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		Moreover, she presents no argument or evidence regarding or disputing the later 2025 judgment on which the sister-state judgment is based. As for her challenge to the interest calculations, they are based on the contention she made payments towards the earlier Virginia judgment. The 2025 Virginia judgment on which the sister-state judgment is based, however, is for a lesser amount. Indeed, as David points out, 2025 Virginia judgment and the sister-state judgment give Gladys credit for payments she made before the 2025 Virginia judgment was entered. Gladys does not identify any payments made after the 2025 Virginia judgment was entered. Gladys's claims of inability to pay the judgment is not a basis for setting it aside. Simply stated, she has not established any basis for setting aside the sister-state judgment even if her motion was timely. Based on the foregoing, the motion is DENIED. David's counsel is to give notice of this ruling.
13.	<i>Signature Collection Properties, LLC vs. Academy West Investments, LLC</i> 2021-01206266	Before the court are the following two motions filed by plaintiff and judgment creditor Signature Collection Properties, LLC (Creditor): (1) motion to compel defendant and judgment debtor Versity Investments, LLC (Versity) to provide further responses to post-judgment special interrogatories, set two, and request for monetary sanctions, and (2) motion to compel Versity to provide further responses to post-judgment request for production of documents, set two, and request for monetary sanctions. <u>Motion No. 1 (Special Interrogatories)</u> By this motion, Creditor seeks to compel Versity to provide further responses to special interrogatory nos. 52-153. Code of Civil Procedure section 708.020 authorizes a judgment creditor to propound special interrogatories on a judgment debtor in aid of its efforts to enforce the judgment. Section 708.020 generally allows the judgment creditor to propound interrogatories in the same manner as provided during the regular course of the prejudgment litigation and requires the judgment debtor to respond in the same manner as required during the regular course of the prejudgment litigation. Section 708.020 allows the judgment creditor to propound multiple sets of post-judgment interrogatories, but may not propound any set within 120 days after the judgment debtor has responded to a prior set. Significantly, section 708.020, subdivision (d), states, "The limitation provided by Chapter 13 (commencing with Section 2030.010) of Title 4 of Part 4 on the number of interrogatories that may be